SUPPLY AGREEMENT No. SA-2024-02

This Supply Agreement is entered into on 15 April 2024 between Torrevalle Acque S.p.A., with registered office at Via dei Mulini 14, Borgo Torrevalle, Italy (the "Customer"), and Northgate Pumps Ltd, with registered office at 12 Canal Wharf, Northgate, United Kingdom (the "Supplier").

1. Scope

The Supplier shall supply HB-60 packaged booster sets, including controller, pressure vessel and commissioning on site, as ordered by the Customer from time to time.

2. Prices

The unit price of one HB-60 booster set is EUR 27,400, excluding VAT. The price of the recommended spare parts kit is EUR 1,950. Prices are fixed for the term of this Agreement.

3. Term

This Agreement enters into force on 1 May 2024 and remains in force for 36 months. It does not renew automatically.

4. Delivery

Delivery shall be made DAP to the Customer's site named in the purchase order, within 12 weeks from the date of the purchase order.

5. Payment

Invoices are payable net 45 days from the invoice date, by bank transfer.

6. Liquidated damages

For each full week of delay in delivery the Supplier shall pay liquidated damages of 0.5% of the value of the delayed goods, up to a maximum of 5%.

7. Termination

Either party may terminate this Agreement for convenience by giving 90 days' written notice. Purchase orders accepted before the notice remain binding.

8. Notices

Notices under this Agreement shall be sent by certified e-mail (PEC) to torrevalleacque@pec.example or by international courier to the registered office of the receiving party.

9. Warranty

The Supplier warrants the goods against defects in materials and workmanship for 24 months from commissioning or 30 months from delivery, whichever ends first.

10. Governing law and language

This Agreement is governed by Italian law. The Court of Borgo Torrevalle has exclusive jurisdiction. This Agreement is executed in English only.

Torrevalle Acque S.p.A. - Elena Sartori

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Northgate Pumps Ltd - Helen Marsh

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